

ORDER SHEET.

IN THE ISLAMABAD HIGH COURT, ISLAMABAD.

JUDICIAL DEPARTMENT.

Criminal Miscellaneous No. 255 of 2025

MUHAMMAD WAJID MUNEER.

VS

THE STATE ETC.

S. No. of order/ proceedings	Date of order/ proceedings	Order with signature of Judge and that of parties or counsel where necessary.
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17.02.2025

**Ch. Javed Saddique, Advocate for the Petitioner.
Mr. Mohsin Bashir, Advocate for the Complainant.
Raja Zameer ud Din, Assistant Attorney General.
Mr. Babar Ali SI, F.I.A Cyber Crime.**

1. Through the instant Petition, the Petitioner [Muhammad Wajid Muneer (**“Petitioner/Accused”**)] seeks post-arrest bail in case FIR No. 230/24 dated 23.9.2024 registered under Section 14 of the Prevention of Electronic Crimes Act, 2016 (**“PECA”**) read with Sections 420/419/34/109, Pakistan Penal Code, 1860 (**“PPC”**) registered with FIA, Cyber Crime Reporting Centre, Islamabad (**“Subject FIR”**).

2. Facts of the case as per contents of the FIR are that consequent upon conclusion of enquiry No.RE-859/2024 of FIA Cyber Crime Reporting Centre, Islamabad, it transpired that the accused (i) user of WhatsApp Account No.+998947696264 with the active connivance of co-accused (ii) Muhammad Yaqoob, (iii) Muhammad Altaf, (iv) Muhammad Ishaq, (v) Meharban, (vi) Muhammad Wajid Munir (**Petitioner/Accused**), (vi) Haseeb Hussain, (vii) Raja Huzaifa Ali and Seema Pervaiz, having respective account numbers, by impersonating as Ms. Emma, an Online Employer with *mala fide* intentions, ulterior motives and fraudulent notions, communicated

false and misleading information to the Complainant [Muhammad Ayaz Khan] and persuaded him to transfer an amount of PKR 2,294,600/- in the pretext of Online Job Tasks via different transactions mentioned in the FIR. During enquiry, the relevant records were obtained from concerned departments and it transpired that the abovementioned accused persons are involved in defrauding the Complainant to the tune of Rs. 2,294,600/-. Hence, this FIR.

3. The learned counsel for the Petitioner/Accused argued that the Petitioner/Accused is innocent and has no nexus whatsoever with the commission of the alleged offences; that the Petitioner/Accused has been falsely involved in the instant case due to ulterior motives and malicious intent; that the allegations in the FIR are based on conjectures, surmises, and assumptions which as such lack substantive or corroborative evidence; that there is no direct or independent evidence that connects the Petitioner with the alleged offences; that the offences do not fall under the prohibitory clause; that investigation is complete; that there is no likelihood of the Petitioner's absconding or tampering with the evidence; that the prosecution has failed to show any *mens rea* or direct involvement of the Petitioner in the alleged offences, which are essential ingredients of the offences cited in the FIR; and that the Petitioner is ready to furnish solvent surety bond to the satisfaction of the court if he is released on bail.

4. Learned AAG resisted to the instant bail petition and prayed for its dismissal.

5. I have heard the learned counsel for the parties and have also perused the record with their able assistance.

6. The Accused/Petitioner has been nominated after conducting an enquiry by the FIA Cyber Crime Circle and during enquiry, it revealed that the Accused/Petitioner is found involved in the offences under Section 14 of PECA, 2016 read with Sections 419, 420, 34 and 109, PPC. The role of the Accused/Petitioner involves his active connivance in receiving amount from the complainant through his bank accounts at J.S Bank and Al-Falah Bank. By defrauding innocent people and impersonating as Ms. Emma, an online employer, the Accused/Petitioner on the pretext of providing online job tasks persuaded the complainant to transfer a total of Rs. 2,294,600/-. The Accused/Petitioner is also implicated in a similar offence, as reflected in FIR No. 266/24 dated 11.11.2024, registered under Section 14 of PECA read with Sections 420/419/34 & 109, PPC registered with the FIA Cyber Crime Police Station, Islamabad. Furthermore, the accused is involved in two other FIRs of similar nature.

7. Although the offences for which the Accused/Petitioner is nominated in the present case, as well as in other similar cases, are not covered by the prohibitory clause of Section 497, Cr.P.C, where the grant of bail is a rule and refusal is an exception, the Accused/Petitioner's involvement in this case indicates that he is a habitual offender and there is a strong likelihood that the Accused/Petitioner may repeat the same offence, thereby posing a continued risk to innocent individuals. The repetition of offence is an exceptional circumstance, due to which the Accused/Petitioner is not entitled to the concession of bail, Moreover reasonable grounds also exist to connect him with the alleged offence.

8. In view of the foregoing, I am not inclined to grant bail to the Petitioner. As such the instant Bail Petition is **dismissed**.

9. All the observations made hereinabove are tentative in nature and shall have no bearing on the final determination of guilt or innocence by the learned trial Court.

(MUHAMMAD AZAM KHAN)
JUDGE